discharge its obligation of providing security to all citizens by placing one group of citizens in the line of fire. Moreover, arming untrained SPOs with firearms endangered the lives of the residents caught in the crossfire.

The Supreme Court concluded its decision with a number of orders to the government of Chhattisgarh and the central government. All efforts were to be made to recall firearms provided to SPOs. Former SPOs were to be protected from revenge attacks by Naxalites. In future, SPOs could only be appointed to assist in disaster relief efforts and to regulate traffic, not to combat insurgents. The state government was ordered not only to prevent the operation of Salwa Judum, but also to promptly and diligently prosecute its past criminal activities.

This was a courageous decision. Prime Minister Manmohan Singh had in 2006 described Naxalism as the 'single biggest internal security challenge' that India had ever faced.[26] As some of the other chapters in this book demonstrate, Indian courts – much like their counterparts in other regions of the world – are often reticent when confronted with questions of national security. The court did not mince its words, and neither did the news headlines of the time: 'SC terms arming Salwa Judum "unconstitutional"',[27] 'Salwa Judum is illegal, says Supreme Court',[28] 'Salwa Judum is illegal, scrap it, says SC'.[29] With a BJP government in the state and the Congress-led United Progressive Alliance (UPA) government in Delhi, posturing over what the judgement represented and who was to be held politically accountable began immediately.

Equally significant as the court's decision, however, was its diagnosis of the socio-economic causes behind the state of affairs in Chhattisgarh. The first twenty-two paragraphs of its judgement condemned the policies of the state, which privileged the interests of the extractive mining industry over those of the Adivasis. This sense of disenchantment against the state fuelled social unrest and established an environment in which Naxalism was able to thrive. For the court, this case was symbolic of 'a yawning gap between the promise of principled exercise of power in a constitutional democracy, and the reality of the situation in Chhattisgarh'[30] caused by '[p]redatory forms of capitalism'.[31]